

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- x **SUMMONS**

ERICA MIRANDA,

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

DETECTIVE SEKOU A. BOURNE, Shield No. 5941,
DETECTIVE RAYMOND GORDON, Shield No. 4592;
and SERGEANT ALEXANDRU ANGHEL, Shield No.
240,Plaintiff designates Kings
County as the place of trial.

Defendants.

----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 29, 2016

Yours, etc.

/s/JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690TO: DETECTIVE SEKOU A. BOURNE, Housing Bureau PSA 9, 155-09 Jewel Avenue,
Flushing, New York 11365
DETECTIVE RAYMOND GORDON, Narcotics Bureau Brooklyn North, One Police
Plaza, Room 1100, New York, NY 10038
SERGEANT ALEXANDRU ANGHEL, Shield No. 240, Narcotics Bureau Brooklyn
North, One Police Plaza, Room 1100, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ERICA MIRANDA,

Plaintiff,

-against-

DETECTIVE SEKOU A. BOURNE, Shield No. 5941,
DETECTIVE RAYMOND GORDON, Shield No. 4592;
and SERGEANT ALEXANDRU ANGHEL, Shield No.
240,

Defendants.

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff ERICA MIRANDA, by her attorneys, Jacobs & Hazan, LLP, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On November 29, 2013, at approximately 8:30 pm, inside 106 Carlton Avenue, Brooklyn, New York, defendant New York City police officers unlawfully seized plaintiff from her apartment, unlawfully searched plaintiff, falsely arrested, falsely imprisoned, assaulted, battered, and subjected plaintiff to excessive force, without a warrant, probable cause or any legal justification. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully seized, searched, confined, arrested, and used excessive force against plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Erica Miranda is a resident of the state of New York.

3. DETECTIVE SEKOU A. BOURNE, Shield No. 5941, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE SEKOU A. BOURNE, Shield No. 5941, is and was at all times relevant herein assigned to Narcotics Borough Brooklyn North.

5. DETECTIVE SEKOU A. BOURNE, Shield No. 5941, is being sued in his individual and official capacity.

6. DETECTIVE RAYMOND GORDON, Shield No. 4592, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. DETECTIVE RAYMOND GORDON, Shield No. 4592, is and was at all times relevant herein assigned to Narcotics Borough Brooklyn North.

8. DETECTIVE RAYMOND GORDON, Shield No. 4592, is being sued in his individual and official capacity.

9. SERGEANT ALEXANDRU ANGHEL, Shield No. 240, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT ALEXANDRU ANGHEL, Shield No. 240, is and was at all times relevant herein assigned to Narcotics Borough Brooklyn North.

11. SERGEANT ALEXANDRU ANGHEL, Shield No. 240, is being sued in his individual and official capacity.

12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claims against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50 and in accordance with New York State law, on March 28, 2014 plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On November 29, 2013, at approximately 8:30 p.m. plaintiff Erica Miranda was lawfully inside of her apartment located at 106 Carlton Avenue, Apt. 4B, Brooklyn, New York when her ex-boyfriend, Johnny Robinson, knocked on the front door of the apartment.

19. Plaintiff was expecting her ex-boyfriend to stop by because he was supposed to give plaintiff information about a potential job at a deli. Therefore, plaintiff answered the door and told her ex-boyfriend to wait for her downstairs.

20. Plaintiff began to close the door to her apartment so that she could put on the appropriate clothing to go outside, but two plainclothes defendant NYPD officers appeared in the doorway of her apartment before she was able to close the door.

21. The defendant police officers did not have a search warrant to enter plaintiff's apartment, nor did they have an arrest warrant for plaintiff or another person who was inside plaintiff's apartment.

22. Nevertheless, the defendant New York City Police Officers tried to enter plaintiff's apartment, but they were blocked by the front door, which plaintiff was in the process of closing.

23. Instead of entering plaintiff's apartment, the defendant police officers unlawfully reached into the apartment, physically and aggressively grabbed plaintiff, and dragged plaintiff out of the apartment in an unreasonably forceful manner.

24. Thereafter, the defendant police officers twisted plaintiff's arms behind her back in an unreasonably forceful manner, unlawfully placed metal handcuffs on plaintiff's wrists, and tightened the handcuffs unnecessarily causing severe pain to plaintiff's wrists.

25. Plaintiff was terrified, confused about what was occurring, and the defendant police officers were causing physical pain to plaintiff's body, causing plaintiff to scream out to her sister and mother for help.

26. Plaintiff's sister and mother were unable to help plaintiff because by the time claimant's mother and sister reached the doorway of their apartment, the officers had already handcuffed claimant and brought her downstairs.

27. The assault, battery, and excessive force used by the defendant police officers toward plaintiff caused plaintiff to suffer extremely painful injuries to her left wrist, left hand, and left knee.

28. The defendant police officers refused to tell claimant why she was being arrested.

29. The defendant police officers unlawfully placed plaintiff into a black van which was already occupied by other people that had been arrested by the defendant police officers.

30. The defendant police officers transported plaintiff the 88th precinct.

31. The defendant police officers unlawfully searched plaintiff at the 88th Precinct.

32. At no time did the defendant police officers recover any illegal drugs, weapons or contraband from plaintiff.

33. At no time did the defendant police officers observe plaintiff commit a crime, nor did the defendants have probable cause to believe she committed a crime.

34. The defendant officers fingerprinted plaintiff at the 88th precinct.

35. After plaintiff was unlawfully searched and fingerprinted, the defendant officers unlawfully handcuffed her to a pole.

36. Plaintiff remained handcuffed to the pole for several hours until approximately 1:00 am on November 30, 2013, at which time she was transported to Kings County Central Booking.

37. Plaintiff was arraigned on November 30, 2013 at approximately 11:00 pm, almost 26 1/2 hours after she was arrested.

38. At arraignment, claimant was charged with, amongst other things, selling marijuana to an individual whom claimant did not know.

39. Plaintiff was released on her own recognizance at arraignment.

40. All criminal charges brought against plaintiff were dismissed and sealed on January 14, 2015.

41. After she was released from custody, plaintiff sought medical treatment for the injuries caused by the defendant police officers at SUNY Downstate Medical Center at LICH.

42. Specifically, plaintiff was treated for painful injuries to her left wrist, left hand, and left knee, which were swollen, red, and bruised.

43. Plaintiff was given Motrin at the hospital and she was also prescribed Motrin 600 mg, (21 pills) to be taken 3 times a day, as needed for pain.

44. Further, plaintiff was given a brace that she was required to wear on her left wrist.

45. Additionally, plaintiff was instructed to ice the affected areas 4 times a day.

46. As a result of the injuries caused by the defendant police officers, plaintiff missed one week of school and work.

47. At no time did the defendant police officers recover any illegal drugs, weapons or contraband of any kind from plaintiff's person or from a location within plaintiff's possession, custody or control.

48. At no time did the defendant police officers observe plaintiff commit a crime or break a law, and the defendant police officers did not have a legal basis or probable cause to arrest plaintiff.

49. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff and arrested her without legal justification or probable cause.

50. At no time did plaintiff commit a crime, nor did the defendant police officers have any reason to believe he committed a crime.

51. At no time did plaintiff resist arrest in any manner.

52. The individually named defendant police officers falsely communicated to the Kings County District Attorney's Office that plaintiff had committed a crime despite knowing that they lacked a legal basis to arrest plaintiff and had no basis to allege plaintiff committed a crime.

53. Some of the individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, false arrest, false imprisonment, assault, battery, and use of excessive force against plaintiff.

54. The unlawful seizure of plaintiff from her apartment, unlawful search, false arrest, false imprisonment, assault, battery and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

60. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

66. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

67. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

70. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

73. Defendants lacked probable cause to search plaintiff.

74. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

77. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

80. Defendants commenced and continued a criminal proceeding against plaintiff.

81. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

82. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

83. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

85. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

86. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

87. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 86 with the same force and effect as if more fully set forth at length herein.

88. The use of excessive force by defendants in violently grabbing plaintiff, throwing him down the ground, and putting their hands in his mouth is an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

89. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

90. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein

92. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

93. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

94. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

95. In withholding/creating false evidence against plaintiff Erica Miranda, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

96. As a result of the foregoing, plaintiff Erica Miranda, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

97. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

98. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

99. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

100. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

102. Defendants failed to intervene to prevent the unlawful conduct described herein.

103. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

104. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

106. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

107. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

108. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Erica Miranda demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
November 29, 2016

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
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TO: DETECTIVE SEKOU A. BOURNE, Housing Bureau PSA 9, 155-09 Jewel Avenue,
Flushing, New York 11365
DETECTIVE RAYMOND GORDON, Narcotics Bureau Brooklyn North, One Police
Plaza, Room 1100, New York, NY 10038
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North, One Police Plaza, Room 1100, New York, NY 10038

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
November 29, 2016

_____/s/_____
STUART E. JACOBS